

enumerated requirements. See Counsel’s Declaration filed October 7, 2025, ¶12 *et seq.*

Disposition

The Court finds and rules as follows:

1. The Pro Hac Vice Application is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C24-00689
CASE NAME: SHANIEA RODGERS VS. DOES 1-25
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHANIEA RODGERS'S FURTHER**
RESPONSES TO FORM INTERROGATORIES, SET ONE
FILED BY: DIANDA MANAGING PARTNER II, LLC
TENTATIVE RULING:

Defendant Dianda Managing Partner II, LLC (“Defendant”) filed three separate discovery motions on September 16, 2025 to compel further responses to discovery requests propounded upon plaintiff Shaniea Rodgers (“Plaintiff”). Collectively, these motions are referred to herein as the “Motions to Compel Further Responses.” The Motions to Compel Further Responses were set for hearing on February 23, 2026. The motions are opposed.

Background

The discovery requests at issue in the Motions to Compel Further Responses (collectively, the “Discovery Requests”) are the following:

1. Defendant’s Requests for Production of Documents, Set One (the “**RPDs**”);
2. Defendant’s Form Interrogatories—General, Set One (the “**FROGs**”); and
3. Defendant’s Requests for Admissions, Set One (the “**RFAs**”).

An Opposition paper was filed on February 9, 2026. Reply papers were filed February 13, 2026, including a set of Evidentiary Objections (the “Objections”).

Objections

Objection No. 1. Defendant objects to Exhibit A to the Opposition. Exhibit A appears to be a set of further responses to the RFAs, **FROGs** and **RPDs** dated February 1, 2026, January 30, 2026, and February 1, 2026, respectively, followed by a series of medical and other records. Defendant’s “Legal Relevance” and Evidence Code section 352 objections are OVERRULED. Defendant’s “Lacks Foundation” objection is SUSTAINED. The subject exhibit was not attached to any declaration executed under penalty of perjury setting forth any foundation for the proffered exhibit. Rather, it was merely attached as an exhibit to a brief. That is not a proper foundation for the receipt of evidence relative to a law and motion matter. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”) § 9:53a (writings offered in evidence on law and motion matter must be authenticated, typically by filed declarations).

Objection No. 2. Defendant objects to Exhibit B to the Opposition. Exhibit B appears to be an email

dated July 21, 2025 addressing various deadlines in connection with the pending discovery matters. Defendant's "Legal Relevance," "Hearsay" and Evidence Code section 352 objections are OVERRULED. Defendant's "Lacks Foundation" objection is SUSTAINED for the same reasons set forth above.

Analysis

1. Timeliness of Motions to Compel Further Responses

Plaintiff's Opposition contends that the Motions to Compel Further Responses are time barred because they were not filed within the forty-five (45) days deadline imposed by the discovery statutes for the bringing of motions to compel further responses to discovery. See Code Civ. Proc. § 2030.300(c) (a party waives the right to compel further responses to interrogatories unless "notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing..."); see also Code Civ. Proc. § 2031.310(c) (as to response to a demand for production of documents).

The subject responses to the Discovery Requests were served on July 30, 2025. Declaration of James E. Lanham filed September 16, 2025 (re FROGs), ¶12 and **Exhibit H** thereto; Declaration of James E. Lanham filed September 16, 2025 (re RPDs), ¶12 and **Exhibit H** thereto; Declaration of James E. Lanham filed September 16, 2025 (re RFAs), ¶12 and **Exhibit G** thereto. These subject responses are referred to herein as the "Amended Responses."

45 days after July 30, 2025 was Saturday, September 13, 2025. The copies of the Amended Responses proffered with the moving papers failed to contain any proof(s) of service that may have accompanied those responses and the attendant declarations do not describe the method of service. The Reply brief indicates that service was done electronically, although it cites no evidence.

Nonetheless, whether served by email or mail, the cutoff to file a motion to compel further responses would not have run any sooner than September 16, 2025, the day the moving papers were filed. See Weil & Brown, § 8:1146 (2 court days extension for electronic service or 5 calendar days for mail service). Plaintiff's arguments fail to account for an extension of the deadline based on method of service (or to even acknowledge the weekend/holiday extension since September 13, 2025 was a Saturday).

Accordingly, the Court rejects the contention that the Motions to Compel Further Responses are untimely.

2. Merits of Motions to Compel Further Responses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of

documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statements, the Opposition and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests and responses at issue:

FROGs

FROGs No. 6.5. The stated objections are OVERRULED. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled objections.

FROGs No. 8.2. The stated objections are OVERRULED. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled objections.

FROGs No. 11.1. The Court finds that the responding party's answer to this interrogatory is incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits. See Weil & Brown, § 8:1047.

FROGs No. 11.2. The Court finds that the responding party's answer to this interrogatory is incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 12.1. The stated objections are OVERRULED except as to the stated privilege objections. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled objections. If any responsive information is redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log.

FROGs No. 12.2. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 12.3. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 12.6. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 17.1. The stated objections are OVERRULED except as to the stated privilege objections. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled

objections. If any responsive information is redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log. Nothing in this order prohibits the responding party from properly exercising the option to respond, in a code compliant fashion, pursuant to the provisions of Code of Civil Procedure section 2030.230. See Code Civ. Proc. § 2030.230. The present response fails to constitute an adequate code compliant response under Section 2030.230.

RPDs

RPD No. 6. The Court finds that the responding party's statement of compliance with the demand is incomplete. The statement of compliance portion of the response contains non-code-compliant limitations, caveats, and purported carve-outs:

Subject to and without waiving the foregoing objections, and to the extent Plaintiff understands this request, Plaintiff responds as follows: Plaintiff will produce documents in control, custody and possession. Bate stamped RODGERS000001 and subsequently.

The response is not code compliant as written. Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, § 8:1469. The qualifying language is improper and shall be stricken from any further response. All responsive documents shall be produced. The responding party is hereby admonished regarding the scope of their discovery obligations. The responding party is obligated to produce all responsive documents in the responding party's possession, custody or control. Code Civ. Proc. § 2031.010(a); see also Code Civ. Proc. § 2031.220. Documents under a party's "control" include those which a party has the legal right to obtain upon demand from third parties.

The stated objections are OVERRULED except as to the stated privilege objections. The responding party is ordered to make a further response to this document request without the overruled objections and without the stated qualifying language. If any responsive documents are redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log. The log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

RPD No. 8. The Court finds that the responding party's representation of the inability to comply is inadequate, incomplete, or evasive. The portion of the response containing the statement of the inability to comply contains non-code-compliant limitations, caveats, and purported carve-outs:

Subject to and without waiving the foregoing objections, and to the extent Plaintiff understands this request, Plaintiff responds as follows: after a diligent search and reasonable inquiry, there are no responsive documents in Plaintiff's possession, custody, or control

The response is not code compliant as written. Among other things, the response fails to comply with the provisions of Code of Civil Procedure section 2031.230. See Code Civ. Proc. § 2031.230 ("A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. **This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding**

party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (emphasis added).

The qualifying language is improper and shall be stricken from any further response.

The stated objections are OVERRULED except as to the stated privilege objections. The responding party is ordered to make a further response to this document request without the overruled objections and without the stated qualifying language. If any responsive documents are redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log. The log need not designate documents generated by the responding party’s attorneys which may be withheld without further disclosure, subject to any further court order.

RPD Nos. 22, 29, 31, 34, and 35. The Court finds that the responding party’s representation of the inability to comply is inadequate, incomplete, or evasive for the same reasons set forth with respect to RPD No. 8 above, and the Court makes the same orders requiring the responding party to make a further response to these document requests.

RPD Nos. 30 and 32. The Court finds that the responding party’s representation of the inability to comply is inadequate, incomplete, or evasive for the same reasons set forth with respect to RPD No. 6 above, and the Court makes the same orders requiring the responding party to make a further response to these document requests.

RFAs

RFA No. 27. The stated objections are OVERRULED. The responding party is ordered to make a further response to this request for admission without the overruled objections. The response shall be code compliant, including, among other things, “(1) [admitting] so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2) [denying] so much of the matter involved in the request as is untrue. [¶] [and] (3) [specifying] so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” See Code Civ. Proc. § 2033.220(b).

Sanctions

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds “substantial justification” for that party’s position or other circumstances making the sanction “unjust.” Code Civ. Proc. §§ 2030.300(d), 2031.310(h) and 2033.290(d); see Weil & Brown, § 1920.

In addition, Plaintiff’s failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court finds that the foregoing conduct by Plaintiff constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In failing to make full and complete code compliant responses and in unsuccessfully opposing this motion, the Court finds that Plaintiff did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of the sanction unjust.

Plaintiff shall pay monetary sanctions to Defendant in the amount of **\$4,305.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by Defendant as a result of the foregoing conduct by Plaintiff. In fixing said amount, the

Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute.

Disposition

The Court further finds and orders as follows:

1. The Motions to Compel Further Responses are GRANTED.
2. Plaintiff shall serve verified further amended responses to the Discovery Requests within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The Monetary Sanctions shall be paid by Plaintiff to Defendant within **thirty (30) calendar days** of notice of entry of this order.
4. The Court shall issue the order after hearing.

17. 9:01 AM CASE NUMBER: C24-00689
CASE NAME: DOES 1-25
*HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHANIEA RODGERS'S FURTHER
RESPONSES TO REQUEST FOR ADMISSION, SET ONE
FILED BY: DIANDA MANAGING PARTNER II, LLC
TENTATIVE RULING:

See Line 16 above.

18. 9:01 AM CASE NUMBER: C24-00689
CASE NAME: SHANIEA RODGERS VS. DOES 1-25
*HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHANIEA RODGERS'S FURTHER
RESPONSES TO REQUEST FOR PRODUCTION, SET ONE
FILED BY: DIANDA MANAGING PARTNER II, LLC
TENTATIVE RULING:

See Line 16 above.